New York State Unified Court System

nycourts.gov

Name Change and/or Sex Designation Change Petition for Individual Adult (person 18 or over)

nycourthelp.gov

_____ Court

County of _____

Petitioner (Your Present Name)**:** _____

Index Number: _____

I am requesting a Court Order for the following (check all that apply)**:**

- ☐ **Name Change** (complete Section A below)
- ☐ **Sex Designation Change** (complete Section B below)

Note:

- A court order is not required under New York law to change your sex designation on an identity document (birth certificate, driver's license, photo ID, etc.) issued in New York.
- Every state has its own requirements for a sex designation change. Some states may not honor sex designation change orders from New York courts. If you want to change an identity document issued in another state, you should check that state's requirements before you file an application.
- This application is for a declaratory judgment. A declaratory judgment states a fact under the law. If granted, the sex designation change order legally recognizes your gender identity.

RECORDS SEALING: The clerk will temporarily make your case inaccessible to the public (your name and case information will be private) until the judge makes a final decision about your case.

Section A: Name Change (complete this section for a name change)

1. **Your Requested New Name:** _____
2. **Your Place of Birth** (Street Address, City/Town/Village, State, Zip, Country)**:**

_____

Note: You must attach **proof of birth** to this petition.

- If you were born outside of the State of New York, proof of birth can include a birth certificate, passport, or any other legal document which shows the date and place of your birth.
- If you were born in the State of New York, **you must** attach **one** of the following:
  - Certified Copy of your government-issued birth document (i.e., Birth Certificate/Certification of Birth):
    - If you were born in New York City, you can get a certified copy of your birth document from the New York City Department of Health and Mental Hygiene
    - If you were born outside New York City, you can get a certified copy of your birth document from the New York State Department of Health's Vital Records Department
  - Certified Transcript of your Birth Certificate
  - Certificate from Commissioner or local Board of Health stating no such Certificate is available

3. **Have you ever been convicted of a crime?** ◯ **Yes** ◯ **No**

   If you answered **'Yes'** to question **3**, you must answer questions **4 and 5**.

   4. **Court where you were convicted:** _____

   5. **Crime for which you were convicted:** _____

6. **Have you ever filed for bankruptcy?** ◯ **Yes** ◯ **No**

7. **Are there any judgments or liens against you?** ◯ **Yes** ◯ **No**

8. **Are you a party in a lawsuit or other court case?** ◯ **Yes** ◯ **No**

   If you answered **'Yes'** to question **6, 7 or 8**, provide details below, including the court where it was filed, the date it was filed, and the case number (if known).

9. **Are you currently married?** ◯ **Yes** ◯ **No**

10. **Were you previously married?** ◯ **Yes** ◯ **No**

11. **Do you have any children under 21?** ◯ **Yes** ◯ **No**

12. **Do you have to pay child support?** ◯ **Yes** ◯ **No**

    If you answered **'Yes'** to question **12**, you must answer questions **13, 14 and 15**.

    13. **Are your child support payments up to date?** ◯ **Yes** ◯ **No**

        If **'No,'** how much do you owe? $_____

    14. **Court that issued the child support order:** _____

    15. **Child Support Collections Unit:** _____

16. **Do you have to pay spousal support?** ◯ **Yes** ◯ **No**

    If you answered **'Yes'** to question **16**, you must answer questions **17 and 18**.

    17. **Are your spousal support payments up to date?** ◯ **Yes** ◯ **No**

        If **'No,'** how much do you owe? $_____

    18. **Court that issued the spousal support order:** _____

19. **Have you ever filed a name change petition before?** ◯ **Yes** ◯ **No**

    If **'Yes,'** provide details below, including the court where you filed the petition, the date that you filed it, the case number (if known), and the result.

20. What are your reasons for changing your name?

Provide details below.

Section B: Sex Designation Change (complete this section for a sex designation change)

21. Your new sex designation: _____

22. Have you ever filed a sex designation change petition before? ◯ **Yes** ◯ **No**

If **'Yes,'** provide details below, including the court where you filed the petition, the date that you filed it, the case number (if known), and the result.

23. Do you want to provide your reasons for changing your sex designation? ◯ **Yes** ◯ **No**

If '**Yes**,' you may provide details below. If '**No**,' leave this question blank. Please note, this information is optional and is not required for a court order to change your sex designation.

Section C: Personal Information (all applicants must complete this section)

24. Your Present Name: _____

25. Your Age: _____

26. Your Date of Birth (Month/Day/Year)**:** _____

27. Your Current Address (Street Address, City/Town/Village, State, Zip, Country)**:**

Note: The court may require you to show proof of address when you file your petition.

28. Should this court record be sealed for your personal safety? ○ **Yes** ○ **No**

If **'Yes,'** provide details below.

29. Have you attached any supporting documents or additional pages? ○ **Yes** ○ **No**

If **'Yes,'** list the name or a description of the document(s) below.

30. I respectfully request a Court Order permitting my (check all that apply)

☐ **name change**

☐ **sex designation change**

Petitioner Signature **Date**

Section D: Verification

I affirm this day of , **20**, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

Petitioner Signature

Print Name

Print Form

Note: You can complete and submit a Fee Waiver Application form asking the court to waive the filing fees for your application if you qualify:

- A fillable Fee Waiver Application form is available at: https://ww2.nycourts.gov/fee-waiver-application-36856
- For more information regarding Fee Waiver, go to https://www.nycourts.gov/CourtHelp/GoingToCourt/feeWaiver.shtml